

Membership

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

In plain words

- Nobody already on the list loses their place.
- Nothing changes until a majority of all electors agree and the Minister is told.
- Every application gets a written decision within 90 days.
- Every decision can be appealed to the appeal body.

Why this draft is here

Deciding who belongs is one of the biggest powers a Nation has. It needs written rules, deadlines, and an appeal that council doesn't control.

1. Purpose and limits

- 1.1** This code sets how membership applications are decided if, and only if, the electors take control of membership under Indian Act section 10.
- 1.2** Indian Act subsection 10(1) says a band may take control of its membership if it sets written membership rules and, after appropriate notice, a majority of the electors consent. Subsection 10(2) needs the same consent to set the rules and a way to review decisions.
- 1.3** Indian Act subsection 10(4) says the rules cannot take away the right of a person who was entitled to be on the Band List just before the rules were set, because of something that existed or happened before. This code follows that rule without exception.
- 1.4** Until the Minister gives notice under subsection 10(7) that the band has control, the Department's rules stay in place. This code removes no one from the current list. A council letter that tries to remove a person before that notice is void. The appeal body posts the letter within 7 days of getting it.

2. Taking control

- 2.1** The vote to take control and adopt these rules is a secret ballot vote run by the electoral officer. It passes only if a majority of all electors consent, as subsection 10(1) requires. A majority of the ballots cast is not enough.
- 2.2** At least 60 days before that vote, the electoral officer posts the full rules and a plain summary and sends them to every elector with a known address, on and off reserve.
- 2.3** Council must give the Minister the notice required by subsection 10(6), with a copy of these rules, within 7 days of the vote. Council posts the Minister's reply within 7 days of getting it. If council does not send the notice, the appeal body posts that on day 8 and council honoraria stop until it is sent.

3. Applications

- 3.1 An applicant files a written application with the records officer. The records officer acknowledges it in writing within 14 days and says what evidence is missing.
- 3.2 A membership committee of three electors named by the appeal body decides each application in writing within 90 days of it being complete. Council does not decide applications.
- 3.3 The decision says yes or no, cites the rule, and explains the 30-day appeal. No decision by day 90 counts as a refusal on day 91, and the applicant may appeal on day 92.
- 3.4 A committee member who is immediate family of the applicant must not take part. The appeal body names a replacement for that file.
- 3.5 The records officer posts, every quarter, the number of applications received, approved, and refused. Names are not posted.

4. Appeals

- 4.1 The applicant, or any member, may appeal to the appeal body within 30 days of the decision or the deemed refusal.
- 4.2 The appeal body decides within 45 days, in writing. It must not remove anyone protected by subsection 10(4).

5. Changing this code

- 5.1 Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 5.2 An amendment to these membership rules needs the consent of a majority of all electors, as Indian Act section 10 requires, in a secret ballot vote run by the electoral officer. Council gives the Minister notice of an adopted amendment within 7 days.
- 5.3 The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

6. Review and coming into force

- 6.1 This code comes into force on the day after the electors approve it under Part 2 of this code. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 6.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 6.3 The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 6.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 6.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.